

23SMCV01044 23SMCV01044

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Case Number: 23SMCV01044 Hearing Date: July 16, 2026 Dept: 534

Background

On March 7, 2023, Plaintiffs Jennifer Flynn

Adams and Christopher Adams filed this action against Bessemer Trust

Company of California, N.A., E&TB Investments LLC, Tara Daugherty Broida, Steven

J. Dwyer, and Elizabeth Kim arising out of Plaintiffs' lease of real property

located at 2400 Topanga Skyline Dr., Topanga, CA 90290.

The Second

Amended Complaint, filed March 8, 2024, added Brad Albert Burstin, individually and as Co-Trustee/Co-Successor/Co-Conservator of the Madison Family Trust, Eric Broida, and Victor Grozdich as defendants. The SAC alleges fifteen causes of action for (1) breach of statutory duties; (2) negligence; (3) maintenance of a nuisance; (4) trespass; (5) breach of lease agreement; (6) breach of contract; (7) fraud and deceit; (8) negligent misrepresentation; (9) breach of the duty of good faith and fair dealing; (10) quantum meruit; (11) intentional interference with prospective economic advantage; (12) negligent interference with prospective economic advantage; (13) unfair business practices; (14) intentional infliction of emotional distress; and (15) declaratory and injunctive relief.

On

January 22, 2026, E&TB Investments, LLC filed the amended cross-complaint

for breach of written lease, declaratory relief, and trespass against Jennifer Adams and Christopher Adams.

On February 17, 2026, Victor Grozdich filed

unlawful detainer case 26SMUD00317 Grozdich v. Adams against Jennifer

Adams and Chris Adams related to real property located at 2400 Topanga Skyline

Drive, Topanga CA 90290.

On June 1, 2026, Judge Michael E. Whitaker issued an order finding 23SMCV01044 and 26SMUD00317, are not related within the meaning of California Rules of Court, rule 3.300(a). On June 12, 2026, Judge Whitaker issued an order on an amended notice of related case, again finding the cases were not related.

Motion

On June 17, 2026, Plaintiffs filed the instant motion seeking to relate 23SMCV01044 and 26SMUD00317.

Opposition

Defendants

filed an opposition to the motion and Tara Broida filed separate opposition. Defendants argue the cases are not related, the attempt to relate the cases is a stalling tactic, and the unlawful detainer action lacks preclusive effect.

Reply

In

reply, Plaintiffs reiterate that the cases involve the same property, including the same habitability issues, Plaintiffs seek to enforce an ultimate right to possession through a purchase option, and the cases both arise out of the same lease agreement.

Motion

to Relate Cases

Standard

Pursuant

to Superior Court of Los Angeles County Local Rules, rule 3.3(f)(3), "[i]n the event that the judge designated under California Rules of Court, rule 3.300(h)(1)(A)(B)(C) to make the decision, does not order related any of the cases set forth in the Notice of Related Cases, any party may file a motion to have the cases related. Department 1 [renumbered as of May 4, 2026, Department 534] shall hear the motion, if the cases

are all pending in the Central District or are pending in two or more different districts.”

The

Court Shall Relate the Cases at Issue

On June 1, 2026, and June 12, 2026, Judge

Michael E. Whitaker issued an order finding 23SMCV01044 and 26SMUD00317. The motion is therefore properly before this Court. (SCLAC Local Rules, rule 3.3(f)(3); Cal. R. Ct., rule 3.300(h)(1)(D).)

Cases

are related when they (1) involve the same parties and are based on the same or similar claims, (2) arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact, (3) involve claims against, title to, possession of, or damages to the same property, or (4) are likely for other reasons to require substantial duplication of judicial resources if heard by different judges. (Cal. R. Ct., rule 3.300(a).) “When for tactical reasons one side files an action related to an existing case, both sides must file this routine notice. The notice goes to the trial judge in the low-numbered case, who then can decide how to handle the parallel litigation. The notice allows the trial court to promote efficiency, to avoid duplicative effort, to combat judge-shopping, and to minimize the prospect of conflicting results. The trial court system relies on this mechanism to detect and to cure the problem of parallel litigation within its jurisdiction.” (Harris v. Rojas (2021) 66 Cal.App.5th 817, 820.)

The

cases do not involve the same parties as only Plaintiffs and Grozdich are common to both cases. (Cal. R. Ct., rule 3.300(a)(1).) The cases also are not based on the same or similar claims. (Ibid.) The cases also do not arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact. (Cal. R. Ct., rule 3.300(a)(2).) Unlawful detainer proceedings only concern straightforward issues regarding the right to possession of disputed premises and the award of damages for any unlawful detention; therefore, issues regarding the property's title cannot be adjudicated therein because unlawful detainer proceedings are designed to be summary proceedings. (Martin-Bragg v. Moore (2013) 219 Cal.App.4th 367, 385.)

However,

the cases involve possession of the same property, (Cal. R. Ct., rule 3.300(a)(3)), and will require a substantial duplication of judicial resources if heard by different judges. (Cal. R. Ct., rule 3.300(a)(4).) The Second Amended Complaint seeks restrictions on Plaintiffs' eviction as well as orders enforcing Plaintiffs' alleged right to purchase the property. The unlawful detainer action is also based upon the same lease agreement at issue in the civil case. Furthermore, Plaintiffs' claims in the civil action involve allegations that property was uninhabitable, which are also raised in the unlawful detainer case and, if proven, may entitle Plaintiffs to retain possession. (See e.g. *Green v. Superior Court* (1974) 10 Cal.3d 616, 635 ("Once we recognize that the tenant's obligation to pay rent and the landlord's warranty of habitability are mutually dependent, it becomes clear that the landlord's breach of such warranty may be directly relevant to the issue of possession. If the tenant can prove such a breach by the landlord, he may demonstrate that his nonpayment of rent was justified and that no rent is in fact 'due and owing' to the landlord. Under such circumstances, of course, the landlord would not be entitled to possession of the premises.").)

While

Defendants are correct that the civil case involves additional claims for damages and numerous other parties, it does not negate the relevant similarities that render the cases related within the meaning of Rule 3.300. Having a single judicial officer preside over the entirety of the parties' disputes regarding the property promotes judicial efficiency and reduces the potential for inconsistent rulings, including regarding the condition of the property.

The

Court finds the cases are related within the meaning of California Rules of Court, rule 3.300 and the motion is GRANTED.

Conclusion

Plaintiffs

Jennifer Flynn Adams and Christopher Adams' Motion to Relate is GRANTED.

The

Court relates 23SMCV01044 and 26SMUD00317 and orders 26SMUD00317 reassigned to Department 207 of the Beverly Hills Courthouse for all purposes.

All hearings
currently set in 26SMUD00317 are hereby advanced and vacated.

Counsel
for Moving Party is ordered to give notice.